Proposed Amendments to Appear
on the November 3, 2026 General Election Ballot
(ballot text)

Constitutional Amendment 1:

"PROPOSING AN AMENDMENT TO ARTICLE 4, SECTION 22 OF THE CONSTITUTION OF NEW MEXICO TO REQUIRE THE GOVERNOR TO PROVIDE VETO MESSAGES ON ALL BILLS VETOED IN WHOLE OR IN PART AND TO PROVIDE THAT ALL BILLS PASSED BY THE LEGISLATURE AND NOT ACTED ON BY THE GOVERNOR WILL BECOME LAW."

Constitutional Amendment 2:

"PROPOSING TO AMEND ARTICLE 7, SECTION 1 OF THE CONSTITUTION OF NEW MEXICO TO REMOVE THE REQUIREMENT THAT SCHOOL ELECTIONS BE SEPARATE FROM PARTISAN ELECTIONS."

Constitutional Amendment 3:

"PROPOSING AN AMENDMENT TO ARTICLE 12, SECTION 13 OF THE CONSTITUTION OF NEW MEXICO TO ESTABLISH NOMINATING COMMITTEES TO PROVIDE LISTS OF NOMINEES TO THE GOVERNOR FOR APPOINTMENT OF NONSTUDENT MEMBERS TO THE BOARDS OF REGENTS OF STATE EDUCATIONAL INSTITUTIONS; PROVIDING THAT STUDENT MEMBERS OF BOARDS OF REGENTS SHALL BE APPOINTED FROM A LIST PROVIDED BY AN ELECTED STUDENT GOVERNING BODY OF THE INSTITUTION; PROVIDING THAT, EXCEPT FOR A STUDENT MEMBER, MEMBERS OF THE BOARDS OF REGENTS SHALL NOT HAVE CHANGED THEIR POLITICAL PARTY REGISTRATION IN THE TWELVE MONTHS PRECEDING APPOINTMENT."

Constitutional Amendment 4:

"PROPOSING TO AMEND ARTICLE 4, SECTION 10 OF THE CONSTITUTION OF NEW MEXICO TO ALLOW LEGISLATIVE COMPENSATION THAT IS LIMITED TO THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO, TO REQUIRE LEGISLATIVE COMPENSATION TO BE REDUCED IF THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO FALLS, TO ALLOW LEGISLATIVE COMPENSATION TO BE INCREASED ONLY IF THE MEDIAN HOUSEHOLD INCOME FOR NEW MEXICO RISES AND TO PROVIDE FOR DELAYED IMPLEMENTATION."

General Information

New Mexico voters will be asked in 2026 to consider four proposed amendments to the state's constitution. Constitutional Amendment 1 would eliminate the governor's ability to pocket veto bills passed by the legislature, Constitutional Amendment 2 would allow school elections to be held at the same time as partisan elections, Constitutional Amendment 3 would establish nominating committees to provide lists of names to the governor to select members of boards of regents of state educational institutions and Constitutional Amendment 4 would allow salaries for state legislators. All four amendments will appear on the November 3, 2026 general election ballot.

The Constitution of New Mexico provides that the legislature, by a majority vote of all members elected to each house, may propose amendments revising the constitution and that proposed amendments must then be submitted to the voters of the state for approval. A proposed amendment becomes part of the state's constitution if a majority of the votes cast in an election on the proposition is cast in its favor, unless the proposed amendment affects one of the sections for which a three-fourths' majority is required. (This year's proposed constitutional amendments do not affect one of those sections and, thus, need only a simple majority vote to be approved.) Proposed constitutional amendments become effective upon approval by the voters unless an effective date is provided within the text of the proposed amendment.

This publication contains a summary and the full text of the joint resolutions proposing the amendments, as well as background information and summaries of arguments for and against the passage of the amendments. New language that is proposed for insertion in the full text of the joint resolutions is shown by underscoring, and language that is proposed for deletion is shown within brackets.

While the full text of the proposed amendments appears in this publication, the title, which appears in capital letters at the top of each joint resolution, is the *only* language that will appear on the ballot.

Disclaimer

The arguments for and against the proposed constitutional amendments in this publication do not necessarily reflect legislative deliberations undertaken at the time of the passage of the proposed amendments. They represent suggestions from the Legislative Council Service staff of arguments in support of and in opposition to the proposed amendments. No claim is made for the validity or consistency of these arguments. This is not an exhaustive list of all cogent and valid arguments. No attempt has been made to provide the same number of arguments for or against a particular

HOUSE JOINT RESOLUTION 1
57TH LEGISLATURE - STATE OF NEW MEXICO - SECOND SESSION, 2026

A JOINT RESOLUTION
PROPOSING AN AMENDMENT TO ARTICLE 12, SECTION 13 OF THE CONSTITUTION OF NEW MEXICO TO ESTABLISH NOMINATING COMMITTEES TO PROVIDE LISTS OF NOMINEES TO THE GOVERNOR FOR APPOINTMENT OF NONSTUDENT MEMBERS TO THE BOARDS OF REGENTS OF STATE EDUCATIONAL INSTITUTIONS; PROVIDING THAT STUDENT MEMBERS OF BOARDS OF REGENTS SHALL BE APPOINTED FROM A LIST PROVIDED BY AN ELECTED STUDENT GOVERNING BODY OF THE INSTITUTION; PROVIDING THAT, EXCEPT FOR A STUDENT MEMBER, MEMBERS OF THE BOARDS OF REGENTS SHALL NOT HAVE CHANGED THEIR POLITICAL PARTY REGISTRATION IN THE TWELVE MONTHS PRECEDING APPOINTMENT.

BE IT RESOLVED BY THE LEGISLATURE OF THE STATE OF NEW MEXICO:

SECTION 1. It is proposed to amend Article 12, Section 13 of the constitution of New Mexico to read:

"A. The legislature shall provide for the control and management of each of the institutions, except the university of New Mexico, by a board of regents for each institution, consisting of five members, four of whom shall be qualified electors of the state of New Mexico, one of whom shall be a member of the student body of the institution and no more than three of whom at the time of their appointment shall be members of the same political party; provided that, except for the student body member, members shall not have changed their political party registration in the twelve months preceding appointment; and provided [~~however~~] further that the student body member provision in this subsection shall not apply to the New Mexico school for the deaf, the New Mexico military institute or the New Mexico school for the blind and visually impaired, and for each of those three institutions all five members of the board of regents shall be qualified electors of the state of New Mexico.

B. The governor shall nominate from a list of names provided by a nominating committee for each institution, as provided by law, and by and with the consent of the senate shall appoint the members of each board of regents for each of the institutions. The terms of nonstudent members shall be for staggered terms of six years, and the terms of student members shall be two years.

Note: underscored material = new language proposed for insertion [~~bracketed material~~] = existing language proposed for deletion

C. The governor shall select, with the advice and consent of the senate, a student member from a list provided by [~~the president~~] an elected student governing body of the institution. [~~In making the list, the president of the institution shall give due consideration to the recommendations of the student body president of the institution. Following the approval by the voters of this 2014 amendment and upon the first vacancy of a position on the northern New Mexico state school board of regents, the governor shall nominate and by and with the consent of the senate shall appoint a student member to serve a two-year term.~~]

D. The legislature shall provide for the control and management of the university of New Mexico by a board of regents consisting of seven members, six of whom shall be qualified electors of the state of New Mexico, one of whom shall be a member of the student body of the university of New Mexico and no more than four of whom at the time of their appointment shall be members of the same political party; provided that, except for the student body member, members shall not have changed their political party registration in the twelve months preceding appointment. The governor shall nominate from a list of names provided by a nominating committee of the university, as provided by law, and by and with the consent of the senate shall appoint the members of the boards of regents. [~~The present five members shall serve out their present terms. The two additional members shall be appointed in 1987 for terms of six years. Following the approval by the voters of this amendment and upon the first vacancy of a position held by a nonstudent member on the university of New Mexico's board of regents, the governor shall nominate and by and with the consent of the senate shall appoint a student member to serve a two-year term.~~] The governor shall select, with the advice and consent of the senate, a student member from a list provided by [~~the president of the university of New Mexico. In making the list, the president of the university of New Mexico shall give due consideration to the recommendations of the student body president~~] an elected student governing body of the university.

E. Members of the board shall not be removed except for incompetence, neglect of duty or malfeasance in office. Provided, however, no removal shall be made without notice of hearing and an opportunity to be heard having first been given such member. The supreme court of the state of New Mexico is hereby given exclusive original jurisdiction over proceedings to remove members of the board under such rules as it may promulgate, and its decision in connection with such matters shall be final.

F. The legislature shall provide for a nominating committee for each state educational institution enumerated in Article 12, Section 11 of this constitution to provide the governor a list of nominees for appointment of nonstudent members to the boards of regents of those institutions. The legislature shall provide for the appointment, terms, powers and duties of

a nominating committee; provided that no more than fifty percent of the members of a nominating committee shall be members of the same political party; and provided further that members shall not have changed their political party registration in the twelve months preceding appointment."

SECTION 2. The amendment proposed by this resolution shall be submitted to the people for their approval or rejection at the next general election or at any special election prior to that date that may be called for that purpose.

Note: underscored material = new language proposed for insertion [~~bracketed material~~] = existing language proposed for deletion

SUMMARY of Proposed Constitutional Amendment 3

Constitutional Amendment 3 proposes to amend Article 12, Section 13 of the Constitution of New Mexico to limit the governor's discretion in appointing members to the boards of regents of the state educational institutions. Currently, regents are appointed by the governor and approved by the Senate, subject to only a few qualifications. Nonstudent regents must be "qualified electors of the state of New Mexico", and no more than three of five or four of seven of these members on a particular board may be registered with the same political party at the time they are appointed. Student regents must be students of their respective institutions and are appointed from a list provided by the president of their respective institutions.

The proposed amendment would require the legislature to establish a bipartisan or nonpartisan regent nominating committee for each of the 10 state educational institutions and would limit the governor's prospective appointments to the nominees selected by the regent nominating committees. Additionally, the proposed amendment would require the governor to appoint student regents from lists provided by the elected student governing bodies of their respective institutions instead of by the institutions' presidents. Finally, excepting the student regents, the proposed amendment would disqualify a person from being appointed to a board of regents if the person changed political party registration in the 12 months preceding the person's appointment.

BACKGROUND AND INFORMATION

As a territory and upon statehood, New Mexico received land grants from the United States to provide for a public education system composed of "common schools" and "educational institutions", which include the following state colleges, universities and specialized schools established (or "confirmed") by Article 12, Section 11 of the Constitution of New Mexico:

- University of New Mexico;
- New Mexico State University;
- New Mexico Highlands University;
- Western New Mexico University;
- Eastern New Mexico University;
- New Mexico Institute of Mining and Technology;
- Northern New Mexico College;
- New Mexico Military Institute;
- New Mexico School for the Blind and Visually Impaired; and
- New Mexico School for the Deaf.

The board of regents of each institution consists of five members except for the Board of Regents of the University of New Mexico, which consists of seven members. The boards of regents for the state's college and universities include student regents who are appointed to serve two-year terms. All other regents serve staggered six-year terms. Constitutional Amendment 3 would not change the composition of the boards of regents or the terms of the boards' members. The changes the proposed amendment would make to the appointment process would apply prospectively to future appointees.

ARGUMENTS FOR

1. Governance of the state educational institutions is an important and challenging task that requires specialized knowledge in multiple fields.

The state educational institutions serve the wide range of cultural, economic and social configurations of New Mexico's communities and, for the specialized schools, meet the unique needs of New Mexico students who are blind, visually impaired or deaf. Through establishing regent nominating committees by law, the legislature will ensure that a nominating committee provides to the governor a list of nominees who would best serve the interests of the institution as a regent. Presuming that the regent nominating committees will comprehensively vet the best qualified prospective regents, there could be more accountability in the governance of the state educational institutions.

2. Regent nominating committees may limit or remove the influence of politics from the appointment process.

Without requiring substantive qualifications for regents to guide the governor's appointments to boards of regents, the current appointment process allows for outsized political influence on the membership of the boards of regents. By requiring the establishment of bipartisan or nonpartisan regent nominating committees, the amendment could insulate the appointment process from politics or other partisan considerations and ensure that the people appointed to the boards of regents are qualified to serve. This could enhance the governance of the state educational institutions.

ARGUMENTS AGAINST

1. The amendment would alter the checks and balances between the legislature and the executive regarding the appointment of state officers.

Traditionally, the executive has the power to appoint, and the Senate has the power to advise and consent to the governor's appointees or reject the governor's appointees. The existing language of Article 12, Section 13 of the Constitution of New Mexico reflects this distribution of powers and clearly assigns responsibilities to the governor and the members of the Senate who are accountable to the voters for poor appointment decisions. Constitutional Amendment 3 obscures the responsibility for appointment decisions by diluting the governor's authority. Additionally, in establishing the nominating committees, the legislature further obscures the governor's and Senate's appointment-related responsibilities as currently provided by the Constitution of New Mexico.

2. The amendment may dilute the governor's or the Senate's accountability in appointing regents.

The Constitution of New Mexico currently places the responsibility of appointment and confirmation on the governor and the Senate, respectively. By creating a nominating committee, the proposed amendment would remove some of that responsibility from the governor and the Senate, which are both accountable to the voters. A nominating committee, on the other hand, is not accountable to the voters. The governor can argue that he or she can only consider the nominees provided by the nominating committee, thus lessening the governor's accountability for the selection. The governor, and to some extent the Senate, is confined to the slate of nominees provided by the nominating committee.